

26NWCV00315 26NWCV00315

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Case Number: 26NWCV00315 Hearing Date: August 14, 2026 Dept: D

ARGONAUT INSURANCE

COMPANY V. GREEN CONTRACTOR STUDIO, INC., ET AL.

CASE NO.: 26NWCV00315

HEARING: 08/14/2026 @

9:30 a.m.

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TENTATIVE ORDER

Plaintiff Argonaut Insurance

Company's unopposed motion for leave to amend its First Amended Complaint is GRANTED.

Plaintiff Argonaut Insurance

Company to separately file their proposed Second Amended Complaint within 7 days of this ruling.

Moving party to give notice.

Plaintiff Argonaut Insurance

Company (Plaintiff) moves for an order granting leave to amend its Second Amended Complaint (SAC).

Background

On April 15, 2026, Plaintiff filed the operative First Amended Complaint (FAC) against Defendants Green Contractor Studio, Inc., Herald Kim, Shannon Wang, Legacy 21, LLC, Legass Investments, Inc., and Does 1 through 35, inclusive, asserting four causes of action: (1) Breach of Contract; (2) Statutory Reimbursement; (3) Quia Timet; and (4) Violation of California's Uniform Voidable Transactions Act.

On May 13, 2026, Plaintiff requested dismissal as to Defendant Legass Investments, Inc. The Clerk entered the dismissal that same day.

On June 5, 2026, Plaintiff requested entering default as to Defendants Green Contractor Studio, Inc., Shannon Wang, and Herald Kim. The Clerk entered the defaults that same day.

On July 16, 2026, the Court denied Plaintiff's ex parte application seeking an order granting Plaintiff leave to file a SAC finding no affirmative factual showing of irreparable harm or immediate danger.

On July 21, 2026, Plaintiff filed the instant motion.

No opposition or reply has been filed.

Legal Standard

The court may grant leave to file a cross-complaint if the failure to plead a cause of action was the result of oversight, inadvertence, mistake, neglect, or other cause. (Code Civ. Proc., § 426.50.) Where the proposed cross-complaint arises out of the same transaction as plaintiff's claim, the court must grant leave to file the cross-complaint as long as defendant is acting in good faith. (Ibid.; see *Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 99 (*Silver Organizations*) [the Court may not "exercise discretion" in the denial of a motion to file a compulsory cross-complaint].) Judicial policy favors resolution of all disputed matters between the parties in the same lawsuit and discretion will usually be exercised liberally to permit

amendment of the pleadings. (See Nestle v. Santa Monica (1972) 6 Cal.3d 920, 929.)¿

“‘Bad faith,’ is defined as

‘[t]he opposite of “good faith,” generally implying or involving actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obligation, not prompted by an honest mistake ..., but by some interested or sinister motive[,] ... not simply bad judgment or negligence, but rather ... the conscious doing of a wrong because of dishonest purpose or moral obliquity; ... it contemplates a state of mind affirmatively operating with furtive design or ill will. [Citation.]’

[Citations.]” (Silver

Organizations, supra, 217 Cal.App.3d at 100.)

A party may obtain leave of court

to file a cross-complaint at any time during the course of a lawsuit, and leave may be granted in the interest of justice. (Code Civ. Proc., §§ 426.50, 428.50; see also Sidney v. Superior Court (1988) 198 Cal.App.3d 710, 718.) “To the extent practicable, all supporting memorandums and declarations must be attached to the notice of motion.” (Cal. Rules of Court Rule 3.1113(j).)¿

Analysis

Plaintiff moves for an order

granting leave to file a SAC on the grounds that (1) Defendant Shannon Whang’s name was misspelled in the FAC, and (2) Plaintiff recently discovered grounds to add a new defendant, Jong Ja Jun, in its fourth cause of action for Violation of California’s Uniform Voidable Transactions Act.

Pursuant to Cal. Rules of Court

3.1324(a), a motion to amend must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered; and (2) state what allegations are proposed to be deleted from or added to the previous pleading and where such allegations are located. Cal.

Rules of Court 3.1324(b) requires a separate declaration that accompanies the motion, stating: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier.¿

Here, Plaintiff has satisfied the

procedural requirements of California Rules of Court, rule 3.1324. Plaintiff attached a proposed Amendment to the FAC correcting the misspelling of Defendant Shannon Whang's name (incorrectly spelled Shannon Wang), added the new defendant, Jong Ja Jun, in the fourth cause of action, identified the proposed amendment and its effect, and submitted a supporting declaration explaining that the amendment is necessary based on a recent review of property records that show Defendants Herald Kim and Shannon Whang transferred an interest in their property to new Defendant Jong Ja Ju. (Hook Decl., ¶¶ 2-3, Exs. 1 and 2.)

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Moreover, leave to amend should be liberally granted in the furtherance of justice, and the record does not demonstrate any prejudice that would result from permitting the amendment. Trial has not been scheduled, and the motion is unopposed. Under these circumstances, the Court finds Plaintiff has established good cause for leave to amend.

Conclusion

Based on the foregoing, Plaintiff Argonaut Insurance Company's unopposed motion for leave to amend its First Amended Complaint is GRANTED.

Plaintiff Argonaut Insurance Company to separately file their proposed Second Amended Complaint within 7 days of this ruling.